

reconveyance was forged or why Trillion's foreclosure was wrongful. Bedi asserts that "the Forged Deed of Reconveyance purposes to include notarized signature of (Cross-)Plaintiff Sunayana Bedi. Bedi, however, never signed, approved, or authorized her signature to be place on any deed of reconveyance." (CC ¶ 17.) Bedi then alleges on information and belief that "FAT.Homes., LLC, working in concert with Sukhpreet Brar and Brar Group, LLC has actual knowledge that the Forged Deed of Revconveyance was fraudulently procured and that Bedi's Deed of Trust remained unpaid and unsatisfied." (CC ¶ 18.) None of these allegations implicate Trillion or constitute specific facts describing adverse possession by Trillion.

Bedi fails to establish how Trillion's claims to the Property are without right.

The demurrer to the Seventh Cause of Action against Trillion is **sustained** with leave to amend.

Cross-Defendant Trillion shall serve Cross-Plaintiff with notice of the entry of this order. Cross-Plaintiff Bedi shall file and serve an amended pleading 30 days from the date of service of notice of entry of this order.

11. 9:00 AM CASE NUMBER: C24-02448

CASE NAME: FAT.HOMES LLC VS. SUKHPREET BRAR

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**

FILED BY: TRILION CAPITAL FUND, LLC

TENTATIVE RULING:

Before the Court is the unopposed Motion to Strike Portions of Defendant / Cross-Complainant Sunayna Bedi's (Bedi) First Amended Cross-Complaint (Cross-Complain, or CC) brought by Cross-Defendant Trillion Capital Fund, LLC (Trillion).

Trillion seeks an order striking from the Prayer, ¶ 6, "Punitive Damages."

Separately, the court has sustained Trillion's Demurrer to the Seventh Cause of Action, for quiet title, which was the only cause of action against Trillion in the Cross-Complaint. (See Line 10 above.) A cause of action for quiet title is not a tort claim and does not award monetary damage. As such there are no claims or allegations against Trillion that would support an award of punitive damages.

Punitive damages are not available in quiet title causes of action, because the action for quiet title is equitable in nature. (*Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, citing *Caira v. Offner* (2005) 126 Cal.App.4th 12, 25, 24 Cal.Rptr.3d 233, citing *Strauss v. Summerhays* (1984) 157 Cal.App.3d 806, 812.)

The motion to strike punitive damages as to Cross-Defendant Trillion is **granted**.

Cross-Defendant Trillion shall serve Cross-Plaintiff with notice of the entry of this order. Cross-Plaintiff Bedi shall file and serve an amended pleading 30 days from the date of service of notice of entry of this order.

12. 9:00 AM CASE NUMBER: C24-02715
CASE NAME: KOLIUS WANE VS. JUDSON BRANDEIS, MD
***HEARING ON MOTION IN RE: TO SEAL COURT RECORDS**
FILED BY: WANE, KOLIUS
TENTATIVE RULING:

Before the Court is motion of I.W. as Guardian ad Litem (GAL) for minor Plaintiff K.W. for an order redacting or sealing the identifying portions of court records such that no search for his name will yield documents concerning this case, directing that future filings refer to Plaintiff and his GAL by initials only, and directing that all future filings containing sensitive medical information concerning the minor Plaintiff be lodged under seal.

Given the sensitive nature of the medical malpractice claims alleged (injury to the genitals of a minor), the court finds good cause under California Rules of Court (CRC) 2.550(d). The court finds the minor plaintiff's overriding interest in privacy overcomes the right of public access to the record, the overriding interest supports sealing records which would disclose the minor's identity, a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed, and proposed sealing/redaction (limited to the name of the minor and of the minor's GAL) is narrowly tailored, and no less restrictive means exists to achieve the overriding interest.

The court finds that the proposed wholesale sealing of documents described by the Plaintiff is overbroad. Instead of sealing entire court records, reports, pleadings, briefs, transcripts, etc., the court orders as follows:

[A] **Future filings:** All parties use the minor's initial (K.W.) and the initials of the minor's GAL (I.W.) from any pleadings, exhibits, and documents filed with the court. In exhibits or reports the minor's name and the GAL's name must be redacted and replaced by the person's initials. If a document or exhibit is an audio or video recording, and redaction is not possible, the exhibit must be filed under seal.

[B] **Past filings** with the court: For any past filings with the court that plaintiff wishes to have redacted, plaintiff may e-file the court with redacted versions of the documents with a cover sheet on colored paper for each document explaining that the documents are redacted versions of documents already filed. The cover sheet for each document must be very specific about which documents are to be replaced and on what date the original document was filed.

Procedure:

[1] **Redaction of filed documents:** Plaintiff is ordered to physically redact the name of the minor and of the GAL from filed endorsed hard copies of filed documents and prepare a cover sheet on colored paper to each one explaining that the document is a redacted version of a document already filed, and the date the original document was filed. Plaintiff must attach a statement under oath verifying that the only change from each original to the corresponding redacted document was the substitution of the initials "K.W." for the minor's name, and the substitution of the initials "I.W." for the name of

the GAL

[2] **Defense opportunity for review and objection:** Prior to submitting a redacted version of any document to the court, Plaintiff must submit the proposed redacted versions to Defense counsel for review. Defense counsel has 45 days from the receipt of any proposed redacted documents to object to the proposed redactions. Any objections must be in writing and sent to Plaintiff's counsel. If Defense counsel does not object in writing within 45 days, Plaintiff may send the redacted documents, along with a cover sheet for each document as described above. If the defense objects in writing the parties must meet and confer to work out an agreement.

[3] **Presentation of redacted documents to court:** if there are no objections, or after objections are worked out by mutual agreement, Plaintiff must efile the documents (in a group, not separately) with the court with a cover sheet on colored paper for each one explaining that the document is a redacted version of a document already filed, and the date the original document was filed.

Plaintiff must attach a statement under oath verifying that the only change from the original document to the corresponding redacted document was the substitution of the initials "K.W." for the minor's name, and the substitution of the initials "I.W." for the name of the GAL, and that Defense counsel has been given 45 days to review the redacted documents, and no objections were received, or that written objections were received and the parties are in agreement that the proposed redacted versions be substituted into the court filed.

[4] **Court entries:** the court will direct the Civil clerk's office to change the name of the minor and the name of the GAL to their initials: "K.W." for the minor and "I.W." for the GAL in the case management system.

The order will become effective on the date that Plaintiff serves of notice of entry of this order on Defendants. Plaintiff shall file proof of service of notice of entry of this order with the Court.

13. 9:00 AM CASE NUMBER: C25-00599

CASE NAME: LYNDEN TRIPP VS. JAMES WINDLEY

***HEARING ON MOTION IN RE: RELIEF FROM MISTAKE, INADVERTENCE, SUPRISE OR EXCUSABLE
NEGLECT**

FILED BY: WINDLEY, JAMES

TENTATIVE RULING:

Before the Court is Defendant's Motion for Relief from Mistake, Inadvertence, Surprise, or Excusable Neglect Under Code of Civil Procedure Section 473(B).

Defendants' Counsel asserts he lost contact with Defendant James Windley, the individual defendant named in the case, and inadvertently failed to serve responses to Plaintiff's Requests for Admissions and Form Interrogatories, Set One, to James Windley.

The motion is **denied**. The court finds Section 473 of the Code of Civil Procedure does not provide for the relief sought here, when the Discovery Act provides analogous, if more limited relief. (*Zellerino v.*